

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the claimant) exercised the right of Access to their medical history against SERVICIOS SANITARIOS LAUBIDEA, S.L.P. (hereinafter, the respondent) without their request having received the legally established response.

The claimant certifies having requested the right of access to their medical history (documents, reports, notes, and signature records of the treatment sessions carried out) through a written request dated, with a reception stamp, of September 14, 2022.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned claim was forwarded to the respondent, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on November 7, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the claim for processing.

The aforementioned agreement granted the respondent a hearing period, so that within ten working days they could present the arguments they deemed appropriate.

The respondent, during the period of allegations throughout the procedure, certifies having addressed the right by responding to the claimant to properly direct their request.

The respondent states that it is a collaborating center of GESMEDICA; the claimant was referred as a patient from the mentioned entity, which is the data controller that determines the purposes and means of processing the personal data of its patients, and the respondent, as a collaborating center, processes personal data solely on behalf of the data controller and following their directives.

Therefore, it is strictly prohibited to provide the referred patient with their medical reports, as well as any other information belonging to the patient.

It is noted that, on several occasions, the respondent has informed the claimant that they cannot provide either the report or the medical history and that to exercise their right of access to such documentation, they must address their data controller, GESTIMÉDICA, who is authorized to do so.

FOURTH: After examining the document submitted by the respondent, it is forwarded to the claimant, so that, within ten working days, they may formulate the allegations they consider appropriate. The claimant has not submitted any allegations.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for the Protection of Data is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and the promotion of awareness among controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

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In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission for processing of the claim for the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to the present procedure, the claim was forwarded to the respondent party for analysis, to respond to this Agency within one month, and to provide evidence of having given the claimant the appropriate response.

The result of this forwarding did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on November 7, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the submitted claim was admitted for processing. This admission for processing determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the claimant was notified of the admission agreement. After this period, the interested party may consider their claim to be accepted.”

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the data subject's rights under this Regulation.”

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject.

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interested party, and to express their reasons in case they do not attend to such request. The burden of proof regarding the compliance with the duty to respond to the request for the exercise of their rights made by the affected party lies with the responsible party.

The communication directed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the interested party has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data." Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the responsible party may request the affected party to specify the "data or processing activities to which the request refers." The right will be deemed granted if the responsible party provides remote access to the data, considering the request fulfilled (although the interested party may request the information referred to in the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that entails a disproportionate cost, which must be borne by the affected party.

Like the other rights of the interested party, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them and being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decision-making, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not adversely affect the rights and freedoms of others.

The right of access concerning medical records is specifically regulated in Article 18 of Law 41/2002, of November 14, Basic Law Regulating Patient Autonomy and Rights and Obligations in Information and Clinical Documentation (hereinafter LAP), the literal text of which states:

"1. The patient has the right of access, with the reservations indicated in section 3 of this article, to the documentation of the medical record and to obtain a copy of the data contained therein. Health centers will regulate the procedure that guarantees the observance of these rights.

2. The patient's right of access to the medical record may also be exercised by duly accredited representation.

3. The patient's right of access to the documentation of the medical record may not be exercised to the detriment of the right of third parties to the confidentiality of the data contained therein collected in the therapeutic interest of the patient, nor to the detriment of the right of the professionals involved in its preparation, who may oppose the right of access based on the confidentiality of their subjective notes.

4. Health centers and individual practitioners will only provide access to the medical records of deceased patients to individuals linked to them, for family reasons or otherwise, unless the deceased expressly prohibited it and this is evidenced. In any case, access by a third party to the medical record motivated by a risk to their health will be limited to the relevant data. Information affecting the privacy of the deceased or the subjective notes of the professionals, or that harms third parties, will not be provided."

In this regard, it is important to highlight Article 15 of the LPA, which outlines the minimum content of the medical record:

"1. The medical record will include the information deemed essential for the truthful and updated

knowledge of the patient's health status. Every patient or user has the right to have a record, in writing or in the most suitable technical support, of the information obtained in all their care processes, carried out by the health service both in the primary care and specialized care settings.

2. The main purpose of the medical record will be to facilitate healthcare, documenting all those data that, in the medical opinion, allow for the truthful and updated knowledge of the health status.

The minimum content of the medical record will be as follows:

- a) Documentation related to the clinical-statistical sheet.
- b) Admission authorization.
- c) Emergency report.
- d) Anamnesis and physical examination.
- e) Progress notes.
- f) Medical orders.
- g) Consultation sheet.
- h) Reports of complementary examinations.
- i) Informed consent.

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- j) The anesthesia report.
- k) The operating room report or the birth record.
- l) The pathological anatomy report.
- m) The evolution and nursing care planning.
- n) The therapeutic application of nursing.
- ñ) The vital signs chart.
- o) The clinical discharge report.

Paragraphs b), c), i), j), k), l), ñ), and o) will only be required in the completion of the medical history when it concerns hospitalization processes or as otherwise provided.

3. The completion of the medical history, in aspects related to direct patient care, will be the responsibility of the professionals involved in it.

4. The medical history will be maintained with criteria of unity and integration, in each healthcare institution at a minimum, to facilitate the best and most timely knowledge by the healthcare professionals of the data of a specific patient in each care process."

Regarding the preservation of the medical history, Article 17 of the LPA, in its points 1 and 5, states that:

"1. Healthcare centers have the obligation to preserve clinical documentation under conditions that guarantee its proper maintenance and security, although not necessarily in the original format, for the proper care of the patient for the appropriate time for each case and, at a minimum, five years from the date of discharge from each care process (...)

5. Healthcare professionals who carry out their activity individually are responsible for the management and custody of the care documentation they generate."

V

Conclusion

In the case analyzed here, the claiming party exercised their right of access to their medical history and, after the period established in the aforementioned regulations had elapsed, their request did not receive the legally required response, as access was not provided.

The aforementioned regulations do not allow for the request to be overlooked as if it had not been made, leaving it without the response that those responsible must issue, even in the event that there are no data of the interested party in the entity's files or even in those cases where the requirements are not met, in which case the recipient of such request is also obliged to require the correction of the observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why the right in question cannot be considered.

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Therefore, the request made obliges the responsible party to provide an express response, in any case, using any means that justifies the receipt of the response.

In this case, however, it is noted that during the processing of the complaint that gives rise to this procedure, formulated precisely due to the lack of an adequate response to the request for the exercise of rights, the responding party has provided documentation proving the communication sent to the interested party informing them about the decision made regarding the request. In this case, the entity to which the request for the right of access should have been directed. This response, therefore, occurs after the established deadline has passed.

Considering the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ACCEPT for formal reasons, the complaint filed by A.A.A., against SERVICIOS SANITARIOS LAUBIDEA, S.L.P. However, the issuance of a new certification by the responding party is not warranted, as the response was issued late, and no additional actions are required from the responsible party.

SECOND: TO NOTIFY this resolution to A.A.A. and to SERVICIOS SANITARIOS LAUBIDEA, S.L.P. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.
1381-090823

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